

		and the work was performed 22 months ago. Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) Defendant’s argument does not show that the Complaint is so incomprehensible that Defendant cannot reasonably respond. Defendant further points out that no homeowner is listed as a Plaintiff. However, Plaintiff, as the homeowners association, has standing to enforce the CC&Rs and is a proper plaintiff. (Civ. Code, § 5975(a) [“servitudes may be enforced by any owner of a separate interest or by the association”].) Thus, the demurrer based on <u>uncertainty</u> is OVERRULED. Defendant argues that the Complaint fails to state facts sufficient to constitute a cause of action. However, Defendant does not assert any meritorious argument that the causes of action in the Complaint fail to state sufficient facts. Defendant does not discuss the elements of Plaintiff’s breach of the CC&Rs or declaratory relief causes of action or provide any argument as to how either cause of action is insufficiently pled. Thus, the demurrer based on <u>failure to state sufficient facts</u> is OVERRULED. Defendant argues the Complaint fails to state the contract type. However, the Complaint identifies the contract upon which Plaintiff sues to be the written CC&Rs, a copy of which is attached to the Complaint as Exhibit A. Thus, the demurrer based on the <u>failure to state whether the contract is written, oral, or implied</u> is OVERRULED. Lastly, Defendant contends that the projects at issue were completed 22 months ago and the statute of limitations has expired. However, the statute of limitations on an action for breach of an association’s CC&Rs is five years. (Code Civ. Proc., § 336(b).) Even if Defendant’s assertion that the work was completed 22 months ago were accepted as true, the Complaint would have been filed well within the applicable statute of limitations. Thus, the demurrer based on the <u>statute of limitations</u> is OVERRULED. <u>Defendant to file an Answer to the Complaint by June 11, 2026.</u> Plaintiff to give notice.
3.	30-2025-01476971 Audenis vs. Contractors State License Board	1. Case Management Conference 2. Demurrer-Other Respondent Contractors State License Board demurs to the First Amended Petition of Writ of Administrative Mandate on the grounds that (1) Petitioner does not have standing to pursue the causes of action alleged on behalf of the corporate licensees and (2) the First Amended Petition is generally uncertain and does not state facts sufficient to constitute the causes of action alleged. Petitioner Patrick Audenis (“Petitioner”), proceeding <i>in pro per</i>, opposed the demurrer. Petitioner argues that he has standing because Respondent is imposing disciplinary fines against Petitioner when such fines should be imposed against the corporate licensees. First Amended Petition of Writ of Administrative Mandate contains the following three causes of action: (1) violation of due process pursuant to Civil Code section 1094.5 and the 14th Amendment of the U.S. Constitution, (2) exceeding statutory authority/improper piercing of corporate veil pursuant to Code of Civil Procedure section 1085, Business and Professions Code section 7068, and 11 U.S.C § 524, and (3) government defamation/stigma plus pursuant to Code of Civil Procedure section 1094.5.

I. JUDICIAL NOTICE

Evidence Code section 452 states:

“Judicial notice may be taken of the following matters to the extent that they are not embraced within Section 451:

(a) The decisional, constitutional, and statutory law of any state of the United States and the resolutions and private acts of the Congress of the United States and of the Legislature of this state.

(b) Regulations and legislative enactments issued by or under the authority of the United States or any public entity in the United States.

(c) Official acts of the legislative, executive, and judicial departments of the United States and of any state of the United States.

(d) Records of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.

(e) Rules of court of (1) any court of this state or (2) any court of record of the United States or of any state of the United States.

(f) The law of an organization of nations and of foreign nations and public entities in foreign nations.

(g) Facts and propositions that are of such common knowledge within the territorial jurisdiction of the court that they cannot reasonably be the subject of dispute.

(h) Facts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452.)

“Courts can take judicial notice of the existence, content and authenticity of public records and other specified documents, *but do not take judicial notice of the truth of the factual matters asserted in those documents.*” (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400, *as modified* (Jan. 6, 2023) [emphasis in original].)

Here, Respondent requests judicial notice of the following documents:

1. CSLB License Certification for Harrison Building (License No. 951412) dated 25 December 15, 2025, attached as Exhibit 1.
2. CSLB License Certification for Ardenne Construction Corp. (License No. I 101437) 27 dated December 22, 2025, attached as Exhibit 2.
3. CSLB License Certification for Brix Construction Inc. (License No. I 0523 80) dated December 22, 2025, attached as Exhibit 3.
4. CSLB License Certification of No Licensure for Patrick Audenis dated December 19, 2025, attached as Exhibit 4.
5. True and correct copy of Citation No. 2-2023-001426 (1426 Citation) issued against Harrison Building on November 15, 2023, attached as Exhibit 5.
6. True and correct copy of Citation No. 2-2023-001799 (1799 Citation) issued against Harrison Building on February 7, 2024, attached as Exhibit 6.

7. True and correct copy of Citation No. 2-2022-002455 (2455 Citation) issued against JO Harrison Building on June 7, 2023, attached as Exhibit 7.
8. True and correct copy of Accusation No. N2024-259 (Accusation Matter) filed against Harrison Building on May 6, 2025, attached as Exhibit 8.
9. True and correct copy of Notice of Ruling enclosing the Court's Minute Order from November 6, 2025, attached as Exhibit 9.

In opposition, Petitioner states “Petitioner does not object to the Court of taking judicial notice of the existence the public records identified in Respondent’s Request for Judicial Notice and contents the limited extent permitted by Evidence Code section 452.” Petitioner further states that he “does not dispute the authenticity of Respondent’s exhibits” proffered in its Request for Judicial Notice. (ROA 55.)

Given the above, Respondent’s Requests for Judicial Notice are GRANTED for purposes of determining Petitioner’s license status and the licensee associated with License No. 1101437. The license status as registered with the Contractors State License Board is subject to judicial notice as “[f]acts and propositions that are not reasonably subject to dispute and are capable of immediate and accurate determination by resort to sources of reasonably indisputable accuracy.” (Evid. Code, § 452, subd. (h).)

II. STANDING AND UNCERTAINTY

First, Respondent argues that Petitioner does not have standing to pursue the causes of action alleged on behalf of the corporate licensees. Respondent argues that the damages were incurred by the corporate licensees and not to Petitioner as an individual. Respondent also argues that the allegations in the Petition are uncertain.

Petitioner argues that he standing because Respondent is imposing disciplinary fines against Petitioner when such fines should be imposed against the corporate licensees.

“[W]hen a demurrer or pretrial motion to dismiss challenges a complaint on standing grounds, the court may not simply assume the allegations supporting standing lack merit and dismiss the complaint.” (*Barefoot v. Jennings* (2020) 8 Cal.5th 822, 827.) “Instead, the court must first determine standing by treating the properly pled allegations as true.” (*Ibid.*) “If, having taken the allegations as true, the court finds no standing, it should sustain the demurrer or dismiss the petition.” (*Ibid.*) “If it finds standing by contrast, the court should allow the litigation to continue.” (*Ibid.*)

“[A] person who invokes the judicial process lacks standing’ if he, or those whom he properly represents, does not have a real interest in the ultimate adjudication because the actor has neither suffered nor is about to suffer any injury of significant magnitude reasonably to assure that all of the relevant facts and issues will be adequately presented.” (*City of Santa Monica v. Stewart* (2005) 126 Cal.App.4th 43, 60, *as modified on denial of reh'g* (Feb. 28, 2005).)

Here Petitioner has not established standing to bring this Petition. For example, in the body of the Petition, Petitioner alleges that he “is an individual California licensed contractor (License No. 1101437) residing in Huntington Beach.” (First Amended Petition, ¶ 4.) He further alleges that the “First Amended Petition is brought solely in Petitioner’s individual capacity as Patrick Audenis, a

		natural person and holder of individual Contractor License No. 1101437. No relief is sought on behalf of any corporation.” (FAP, ¶ 6.) However, the exhibits attached to the Petition and the judicially noticeable documents proffered by Respondent (the authenticity of which Petitioner “does not dispute,” <i>see</i> ROA 55) establish that Petitioner is not the licensee associated with License No. 1101437. In fact, in Petitioner’s “Response to Respondent’s Request for Judicial Notice,” Petitioner states the following: “Respondent’s RJN establishes the following undisputed facts : 1. All citations at issue were issued exclusively to Harrison Building Inc., a corporate licensee. 2. Harrison Building Inc. filed bankruptcy in May 2024 and was later dissolved. 3. Petitioner does not hold an individual contractor license. 4. No citation, accusation, or disciplinary action has ever been issued against Petitioner personally. These facts are not contested. They are central to Petitioner’s claim.” (ROA 55.) Because Petitioner is setting forth two different arguments about whether he is the licensee under License No. 1101437, the Court finds that Petitioner has not established standing. For this same reason, the Petition remains generally uncertain. Whether Petitioner, as an individual, is licensed under License No. 1101437 is pivotal in establishing standing because Petitioner is claiming that he has been injured by Respondent because Respondent attached certain citations and suspensions to “Petitioner Patrick Audenis’s individual license record (License No. 1101437).” Based on the allegations in the Petition, the documents attached thereto, and the judicially noticed documents, it appears that License No. 1101437 is suspended. Thus, if License No. 1101437 is not held by Petitioner as an individual, Petitioner does not have standing to sue for any wrongful citation attachments or suspensions to that license number and the action must be brought by the corporation or individual holding License No. 1101437. The demurrer to the entire First Amended Petition is SUSTAINED with FINAL LEAVE TO AMEND. Any amended Petition to be filed 30 days from notice of this order. Respondent to give notice.
4.	30-2025-01456606 Mackey vs. Packnit	1. Case Management Conference 2. Motion to Be Relieved as Counsel of Record Marc Lazo of K&L Law Group, P.C. (“Moving Attorney”) moves to be relieved as counsel of record for plaintiff Daniel Mackey. The motion is unopposed and Moving Attorney has stated a basis for permissive withdrawal under the Rules of Professional Conduct, Rule 1.16. However, it is unclear whether proper service has been performed. Moving Attorney’s declaration does not indicate whether the client was personally served with the motion papers or served by mail. Further, the proofs of service filed with the moving papers indicate that service was done by email but they do not list any email address for the client.